



March 19th 2018 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=vLI56FjH5UE
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Target Category	delaware_county

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Municipal Meeting Summary Report

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The presiding officer opened the meeting with roll call and standard administrative reminders (including turning off cell phones).
- **Attendance:**
 - **Present:** Mr. Henry, Ms. Reagan, Mr. King.
 - **Absent:** None noted.
 - **Presiding Officer:** Not explicitly stated by name, though managed by the commissioners.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening roll call and meeting preparation.
- **Approval of Minutes:**
 - **Action & Vote Disposition:** Motion to approve the previous meeting minutes for February 2018. Approved by Voice Vote (followed by a roll call vote: Ms. Reagan - yes, Mr. Henry - yes, Mr. King - yes).

4. Substantive Business & Board Action

- **00:01:07 Appointment: County Insurance Committee**
 - **Sponsor / Presenter:** Mr. Spangler, Human Resources.
 - **Deliberation Summary:** Proposal to establish a 7-person educational and advisory committee for county employee health insurance to help employees understand plans and review cost options.
 - **Action & Vote Disposition:** Approved to proceed with forming the committee; a final list of names will be brought back for formal approval later. (Voice/Consensus agreement).
- **00:03:49 Bid Opening: Bridge 204 (West Williams Creek / Panama Junior West)**
 - **Sponsor / Presenter:** Engineering / Commissioners.
 - **Deliberation Summary:** Opening and reading of three submitted construction bids for Bridge 204:
 1. *Duncan Robertson* (Franklin, IN): \$471,391.10
 2. *Baty Construction* (Boggstown, IN): \$643,841.34
 3. *Hoosier Pride Excavating* (Springport, IN): \$354,375.95
 - **Action & Vote Disposition:** Motion made and seconded to take the bids under advisement. Passed 3-0 (Mr. Henry - yes, Ms. Reagan - yes, Mr. King - yes).
- **00:06:48 Presentation: 911 / PSAP Funding Analysis**
 - **Sponsor / Presenter:** Mr. Ritter (Legacy/Consulting Services, former Wayne County PSAP manager and State 911 board director).
 - **Deliberation Summary:** Presentation of a preliminary report analyzing funding options for the consolidated Public Safety Answering Point (PSAP/911 center) across seven Indiana counties. Discussion noted that 65% to 70% of call loads originate within the City of Muncie (police, fire, EMS), and reviewed how other counties split operational costs using local income taxes (LIT) or call-load formulas.
 - **Action & Vote Disposition:** Motion to approve the next phase/addendum of Mr. Ritter's contract. Passed 3-0 (Mr. Henry - yes, Ms. Reagan - yes, Mr. King - yes).
- **00:17:06 Resolution 2018-013: Assignment of Tax Sale Certificates**
 - **Sponsor / Presenter:** Board / Staff.
 - **Deliberation Summary:** Resolution identifying tax sale properties requested by a nonprofit organization (East Central Indiana Regional Planning District). It was noted that the resolution title needed correction from three properties to six properties, and a public hearing was set for April 16th.
 - **Action & Vote Disposition:** Motion to approve Resolution 2018-013 as amended. Passed 3-0 (Ms. Reagan - yes, Mr. Henry - yes, Mr. King - yes).
- **00:18:35 Department Update: Old State Road Carports / Road Vacation**
 - **Sponsor / Presenter:** Highway Department / Staff.

- **Deliberation Summary:** Traffic count on Old State Road averaged 204 cars per day. Discussion regarding whether residents still wish to pursue vacating a portion of the road, and clarifying which sections would remain public for property access. No formal action taken; waiting for further contact from interested parties.
- **00:20:08 Property Matter: Parcel 03-23-289-009.000 (Michael Hinds)**
 - **Sponsor / Presenter:** Jenny Kessler / Legal Staff.
 - **Deliberation Summary:** Discussion regarding a county-owned property abutting Mr. Hinds' parcel. Although historical research noted an old property division error from the 1950s, Mr. Hinds has not yet submitted the required formal bid/purchase paperwork.
 - **Action & Vote Disposition:** Motion to table the matter. Passed 3-0 (Mr. Henry - yes, Ms. Reagan - yes, Mr. King - yes).
- **00:22:45 Discussion: Confined Feeding Operations (CFO) Regulations & Building Permit Hold**
 - **Sponsor / Presenter:** Commissioners / John / Marta (Planning).
 - **Deliberation Summary:** Discussion on continuing the current hold/moratorium on local building permits for Concentrated Feeding Operations (CFOs) while staff drafts local zoning regulations through the Plan Commission. Officials clarified that while IDEM (Indiana Department of Environmental Management) issues environmental permits for manure storage, local permits (building, drainage, driveways) are handled locally.
 - **Action & Vote Disposition:** Consensus/Motion to continue the hold on local permits and direct staff to draft CFO regulations for the Plan Commission. Passed by Voice Vote / Roll Call (Mr. Henry - yes, Ms. Reagan - yes, Mr. King - yes).
- **00:30:48 Purchase Agreement: 3100 South Tillotson Avenue (Jail Project)**
 - **Sponsor / Presenter:** Commissioners / Legal Counsel.
 - **Deliberation Summary:** Presentation of a purchase agreement to acquire the property at 3100 South Tillotson Avenue for \$2.85 million, utilizing Economic Development Income Tax (EDIT) funds as part of the county jail project planning. The purchase is subject to statutory appraisal averages. Commissioners addressed public criticism regarding transparency, explaining that the action responds to directives and overcrowding concerns from the Indiana Department of Correction (DOC) to avoid federal lawsuits and costly mandates similar to past decades. Former Commissioner / Council President Mr. Quackenbush also spoke on historical context and real estate timing.
 - **Action & Vote Disposition:** Motion to approve the purchase agreement. Passed 3-0 (Mr. Henry - yes, Ms. Reagan - yes, Mr. King - yes).
- **00:39:32 Payment of Claims**
 - **Sponsor / Presenter:** County Auditor / Administration.
 - **Deliberation Summary:** Presentation of claims for payment totaling \$908,637.09.

- **Action & Vote Disposition:** Motion to approve claims. Passed 3-0 (Ms. Reagan - yes, Mr. Henry - yes, Mr. King - yes).
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5. Open Public Comment / Citizen Forum

- **00:40:03 Jennifer Irving (Muncie):** Expressed gratitude to the commissioners for taking up CFO land-use ordinances and looking out for all county residents. Suggested that the county look beyond agricultural bureaus for outside resources when drafting regulations.
 - **00:41:45 Bob Frise:** Shared a personal anecdote regarding a gun range built near his property and how subsequent real estate sales proved that community reactions can evolve over time, though acknowledged valid resident concerns regarding new developments.
 - **00:45:32 Fred Cash (Shamrock Lakes):** Thanked the commissioners for addressing CFO concerns and asked whether commissioners had visited proposed CFO sites or reviewed drainage/run-off issues.
 - **00:47:53 Robert Ray:** Spoke as an adjacent property owner regarding alleged trespassing, fence removal, and damaged drainage tiles on his property related to agricultural operations. Commissioners advised him to consult the county drainage board, sheriff's department, or private legal counsel since it involves property trespass and drainage disputes.
 - **00:59:53 Elizabeth Driscoll:** Thanked the commissioners for holding local building permits for CFOs, clarified IDEM's limited role regarding concrete manure pits, and offered to coordinate citizen input and suggestions with planning staff (Marta).
 - **01:04:05 Resident Speaker (Unnamed / Unclear from transcript):** Raised concerns regarding mortality rates for livestock operations, dead animal disposal in pits, groundwater contamination, and proposed requiring large surety bonds or mandatory year-round residency for CFO operators.
 - **01:08:58 Linda Hanson (League of Women Voters of Muncie-Delaware County):** Thanked the board for exercising due diligence regarding long-range land-use planning and CFO ordinances, noting IDEM's limited statutory authority to deny permits based purely on environmental or health harms without local frameworks.
 - **01:10:53 Brittany Jew:** Addressed the board regarding the jail project and previous email correspondence, criticizing board members for dismissing citizen emails as duplicated form letters and urging greater local resistance against state-level mandates. Commissioners responded regarding statutory obligations, elections, and the boundaries of local authority.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Mention of upcoming Plan Commission meetings and ongoing coordination regarding CFO drafts and zoning reviews.
 - **Adjournment:** The meeting concluded following the public comment period (exact adjournment time not explicitly stated in the transcript).
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